

Superior Court of Washington, County of _____

In re Guardianship/Conservatorship of:

Case Number: _____

Respondent/Minor

Motion to Appoint Lawyer

(Clerk Code: MT)

Motion to Appoint Lawyer

Use this form together with Order Appointing Lawyer (form GDN ALL 022). Check local court rules or ask the court clerk how you present this motion.

1. Who is making this request?

My name is _____. I am a:

☐ Respondent or minor 12 years or older

☐ Parent of the children

☐ Court Visitor or Guardian ad Litem

☐ Guardian or Conservator

☐ Lawyer for Respondent, who has not been appointed in this case

☐ Other (*describe relationship*): _____

2. Who needs a lawyer?

I ask the court to appoint lawyer/s for (*name/s*) _____

3. Why should a lawyer be appointed in a Minor Guardianship? (*Check all that apply*)

☐ Does not apply. This is **not** a Minor Guardianship case.

☐ The **parent/s** listed in section 2 ☐ can ☐ **cannot** afford a lawyer (indigent) and:

☐ object to guardianship over their child.

☐ may consent to guardianship over their child, but a lawyer is needed to make sure this consent is fully informed.

☐ need a lawyer because: _____

Important! The court **must** appoint a lawyer at **public expense** for an indigent parent who appears in a minor guardianship case if any one of the above statements is true. If a parent is **not** indigent, the court **may** appoint a lawyer if any one of the above statements is true. A parent may have to fill out a financial statement.

- ☐ The **child** listed in section 2:
 - ☐ is age 12 or older and has asked for a lawyer.
 - ☐ should have a lawyer, as recommended by a Guardian ad Litem or Court Visitor.
 - ☐ has chosen a lawyer who has not yet been appointed by the court.
 - ☐ needs a lawyer because: _____

4. Why should a lawyer be appointed in a Minor Conservatorship or Protective Arrangement? (Check all that apply)

- ☐ Does not apply. This is **not** a Minor Conservatorship or Protective Arrangement.
- ☐ The minor's chosen lawyer has not yet been appointed by the court.
- ☐ The minor's rights cannot otherwise be adequately protected and represented.
- ☐ The minor needs a lawyer because: _____
- ☐ A lawyer must be appointed for the minor at **public expense** because:
 - ☐ the minor cannot afford a lawyer.
 - ☐ the expense of a lawyer would result in substantial hardship to the minor.
 - ☐ the minor does not have practical access to funds to pay a lawyer.
(The court may require reimbursement if this is the only reason to appoint a lawyer at public expense.)
- ☐ The minor's **parent** needs a lawyer because they:
 - ☐ object to conservatorship/protective arrangement over their child.
 - ☐ may consent to conservatorship/protective arrangement over their child, but a lawyer is needed to make sure this consent is fully informed.
 - ☐ other reason: _____

5. Why should a lawyer be appointed in an Adult Guardianship, Conservatorship, or Protective Arrangement? (Check all that apply)

- ☐ Does not apply.
- ☐ Respondent's chosen lawyer has not yet been appointed by the court.
- ☐ Respondent's rights and interests cannot otherwise be adequately protected and represented.
- ☐ Respondent objects to the petition.
- ☐ Respondent requests appointment of a lawyer.
- ☐ Respondent needs a lawyer because: _____
- ☐ Petitioner filed a Petition for Emergency Guardianship/Conservatorship.

6. Who should be appointed?

☐ The court should decide who to appoint.

☐ (*Lawyer name*) _____, WSBA number _____
should be appointed as lawyer for (*name*) _____

☐ This lawyer is the willing counsel of this person's choosing.

☐ (*Lawyer name*) _____, WSBA number _____
should be appointed as lawyer for (*name*) _____

☐ This lawyer is the willing counsel of this person's choosing.

7. Payment

The lawyer should be appointed:

☐ At **public** expense because:

☐ Respondent cannot afford a lawyer.

☐ The expense of a lawyer would result in substantial hardship to Respondent.

☐ Respondent does not have practical access to funds to pay a lawyer.
(*The court may require reimbursement if this is the only reason to appoint a lawyer at public expense.*)

☐ At **private** expense.

The lawyer must be paid at a rate of \$ _____ per hour up to a maximum of \$ _____
or _____ hours unless the lawyer obtains prior approval from the court for a different
amount. The payment shall be made by (*name*) _____.

Person asking for this order fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have
provided on this form are true.

Signed at (*city and state*): _____ Date: _____



Person asking for this order signs here *Print name here*

The following is my contact information:

Email: _____ Phone (*Optional*): _____

I agree to accept legal papers for this case at (*check one*):

☐ my lawyer's address, listed below.

☐ the following address (*this does **not** have to be your home address*):

Street Address or PO Box *City* *State* *Zip*